

PURCHASING AUTHORITY

The Superintendent, with the School Board's formal approval, may designate a qualified employee to serve as the Purchasing Agent for the Board. In this capacity, the agent for the Board may purchase or contract for all goods and services except design and construction services, the responsibility for which shall reside with the Chief Operations Officer, subject to federal and state laws and regulations and School Board policies. All purchases made by the school division will be in accordance with the Virginia Public Procurement Act (VPPA).

All personnel in the division who desire to purchase equipment and supplies shall follow the established procurement procedures for the issuance of a requisition or purchase order. All purchase orders must be forwarded to the Superintendent or the Superintendent's designee for approval and processing.

A. Internal Controls.

The Superintendent, or the Superintendent's designee establishes appropriate procedures for internal accounting controls.

B. Purchasing and Contracting.

1. The Loudoun County School Board encourages full and open competition whenever practicable and whenever required by using competitive solicitation practices to centralize purchasing and contracting within the school division; to realize the economies resulting therefrom; and to seek maximum educational value for every dollar expended.

2. All contact between offerors and bidders for the solicitation of goods, services, and insurance shall only be with Procurement and Risk Management Services employees. All contact between offerors and bidders for the solicitation of design and construction services shall be with Support Services and Procurement and Risk Management Services employees. No offeror or bidder shall initiate or engage in any discussions with any other employee of the School Board or any member of the School Board while a solicitation is outstanding concerning the contents of such solicitation or with the intent to influence or interfere with the contract award authorized by and described in such solicitation. A violation hereof may result in a disqualification of such offeror or bidder.

C. Threshold Monitoring and Notification.

1. The Director of Procurement and Risk Management Services, or the Chief Financial Officer, shall monitor procurement activity to identify patterns where multiple purchases, whether to a single vendor or multiple vendors, are made for the same or substantially similar goods or services within a fiscal year, and where the cumulative value approaches or exceeds the thresholds established in this Policy or the VPPA.

PURCHASING AUTHORITY

2. For purposes of this section, goods or services shall be considered "substantially similar" when they:
 - a. Serve the same functional purpose or educational objective;
 - b. Fall within the same commodity code or service category; or
 - c. Could reasonably have been procured under a single solicitation.
3. Notification to the Finance and Operations Committee shall be required when:
 - a. Cumulative purchases of substantially similar goods or services, regardless of vendor, reach 75% of \$250,000 School Board approval threshold; or
 - b. Cumulative purchases from a single vendor reach 75% of the \$200,000 administrative exemption threshold; or
 - c. Any single purchase order is issued in an amount that is 90% or more of a threshold amount established in this Policy.
4. Such notification shall include:
 - a. The vendor name(s) involved;
 - b. A description of the goods or services purchased, including the functional purpose or educational objective served;
 - c. The cumulative dollar amount of purchases to date;
 - d. The applicable threshold and the percentage of that threshold reached;
 - e. The requesting department(s) and school(s); and
 - f. Any explanation provided by the requesting party regarding the procurement approach.
5. This notification is for informational purposes only and does not constitute a determination that any procurement violation has occurred.

D. Quarterly Reporting.

1. The Director of Procurement and Risk Management Services shall

PURCHASING AUTHORITY

prepare a quarterly report summarizing all threshold monitoring activity under section C during the preceding quarter.

2. The quarterly report shall be delivered to the Finance and Operations Committee at the second regularly scheduled Committee meeting of the month following the end of each fiscal quarter.

3. The report shall include:

- a. A summary of all notifications issued during the quarter under section C.4;
- b. Cumulative fiscal year-to-date spending by commodity category for categories exceeding \$100,000;
- c. Any corrective actions taken or recommended; and
- d. Trend analysis comparing current quarter activity to prior quarters and prior fiscal years.

[Former Policy 4-23]

Adopted: 5/10/94

Revised: 5/10/94, 7/1/97, 5/25/10, 5/10/16, 11/9/21

Current Revision: 6/23/26

Legal Refs: Code of Virginia, 1950, as amended, §§ [2.2-4300 et seq.](#), §§ [22.1-70.](#), and §§ [22.1-78](#)

Cross Refs: Policy [4115](#), School Activity Funds; Policy [4145](#), Petty Cash Funds; Policy [4150](#), Financial Accounting and Reporting; Policy [4320](#), Methods of Procurement; Policy [4340](#), Procurement Procedures; Policy [2160](#), Conflict of Interests and Disclosure of Economic Interests